

EXHIBIT II

GATEHOUSE DOCK CONDOMINIUM.

DECLARATION OF RESTRICTIONS, LIMITATIONS,
CONDITIONS AND AGREEMENTS

GATEHOUSE DOCK CONDOMINIUM

DECLARATION OF RESTRICTIONS,
LIMITATIONS, CONDITIONS AND AGREEMENTS

THIS DECLARATION is made and dated this _____ day of _____, 1986, by Ocean Reef Club, Inc., a Florida corporation, having its principal place of business at Ocean Reef Club, Key Largo, Florida (hereinafter referred to as "Developer"), its successors and assigns:

W I T N E S S E T H:

WHEREAS, Developer desires to establish protective covenants for the benefit of that certain real property to be known as Gatehouse Dock Condominium and described in Exhibit A annexed hereto ("the Condominium property");

NOW, THEREFORE, in consideration of the covenants set forth herein, Developer makes the following Declaration of Restrictions, Limitations, Conditions and Agreements:

1. Ocean Reef Improvement Association Membership Requirement. Each purchaser of a Dock in the Condominium property must apply for and be approved by and become a member of the Ocean Reef Improvement Association, Inc. (hereinafter referred to as "ORIA"), a corporation organized and existing under the Not for Profit Corporation Law of the State of Florida, prior to such purchase and shall remain a member as long as he owns such Dock. ORIA shall be responsible for the operation and maintenance of the Ocean Reef Complex (hereinafter referred to as "the Complex," and defined in the Declaration of Condominium) as set forth herein. By accepting a deed to a Dock in the Complex, each Owner evidences that he will abide by the Articles of Incorporation, By-Laws and Rules and Regulations of ORIA, as such documents may be amended from time to time. No Dock Owner shall rent, lease, give, convey or in any way transfer the property conveyed to him to any person, firm or corporation who at the time of such transfer, lease, gift or conveyance is not a member of or approved by ORIA.

2. ORIA Assessments. The Owner(s) of each Dock shall be subject to an annual ORIA assessment to be secured by lien upon such Dock together with the common elements appurtenant thereto, which lien shall remain upon such Dock the assessment is paid. Such assessment shall be payable in advance on the first day of January of each year to ORIA at its office in Key Largo, Florida. ORIA may adjust such assessments in its sole discretion from year to year and shall apportion such assessments among the Dock Owners within ORIA.

3. ORIA Liens. The assessments of or through ORIA shall constitute a lien upon each Dock and shall have the priority afforded by law. Each Dock Owner shall be liable personally for the payment of all such assessments levied against his Dock. In the event of default in any such payment, the Dock Owner(s) also shall be liable personally for interest on such delinquent payment and for all costs of collecting such payment and interest thereon, including reasonable attorneys' fees. No Dock Owner may exempt himself from liability for any assessments levied against him by waiver of the use or enjoyment of any of the facilities, or by abandonment of the Dock in any other way.

4. Ocean Reef Club Membership Requirement. There is a Club membership format associated with the development of the Condominium property. Each prospective purchaser of a Dock must apply for, be accepted by, and become a member of the Ocean Reef Club, an unincorporated association (hereinafter referred to as "the Club") prior to such purchase and shall remain a member as long as he owns a Dock. The Club was conceived by and is administered and controlled by Ocean Reef Club, Inc., a corporation for profit. Ocean Reef Club, Inc. owns most of the amenities in the Complex which include swimming pool, restaurants, bars, tennis courts and other facilities. The Club will set and collect fees, charges and dues that it deems appropriate.

5. Club Dues and Charges. Dues, fees and charges and all other amounts owing to the Club for services rendered or goods purchased from the Club or its agents shall be assessed and collected by the Club from each member.

6. Club Liens. The dues and other charges of or through the Club shall constitute a lien upon each Dock and shall have the priority afforded by law. Each Dock Owner shall be liable personally for the payment of all such dues and charges levied against his Dock. In the event of default in any such payment, each Owner also shall be liable personally for interest on such delinquent payment and for all costs of collecting such payment and interest thereon, including reasonable attorneys' fees. No Dock Owner may exempt himself from liability for any dues or charges levied against him by waiver of the use or enjoyment of any of the facilities, or by abandonment of the Dock or in any other way.

7. Maintenance. The ORIA assessment proceeds shall be used for the payment of maintenance expenses for the Complex incurred for any or all of the following purposes: (a) lighting, improving and maintaining the bridges, roads, roadways, streets, parks, parkways, lakes; (b) collecting and disposing of garbage, ashes, sewage, rubbish and other waste; (c) employing watchmen or other security personnel; (d) controlling mosquitoes, and (e) doing any other things necessary or desirable in the opinion of ORIA to keep the property neat and in good order. Such obligation, however, shall not require ORIA to maintain the common property or common elements pertaining to the various condominium associations that are or may be formed within the Complex (with the exception of the roadways) which is a responsibility of each condominium association.

8. Care of Complex. No weeds, underbrush or other unsightly growth shall be permitted in any part of the Complex. No refuse pile or unsightly objects shall be allowed to be placed or suffered to remain anywhere therein. In the event that a Dock Owner shall fail or refuse to comply with this paragraph, then ORIA may enter upon such lands and remove the same at the expense of the Owner. Such entry shall not be deemed a trespass.

9. Building and Landscaping. No additional improvements shall be constructed and no additional landscaping shall be installed in the Condominium or the Complex until the plans and specifications therefor shall have been approved in writing by Developer. Developer may reject such plans and specifications for purely aesthetic reasons. For the purposes of this paragraph, "improvement" shall include, without limitation, any sort of building, wall, fence, roof, swimming pool and landscaping.

10. Trailers and Temporary Buildings. No structure of temporary character, such as a trailer, tent, shack, garage, barn, or other outbuildings shall be permitted on the Condominium property, except for such temporary structures as are erected by Developer or those contracting with Developer for construction purposes.

11. Water Systems. The Gatehouse Dock Condominium Association, Inc. shall: (a) become a subscriber to the master water distribution system provided by the Florida Keys Aqueduct Authority; and (b) pay the standard periodic charges which may be promulgated, from time to time by the Authority.

12. Oil Drilling. No oil drilling, oil development operation, oil refining, quarrying or mining operations of any kind shall be permitted upon or in any portion of the Condominium property nor shall oil wells, tanks, tunnels, mineral excavations or shafts be permitted upon or in any of such lands. No derrick or other structure designed for use in boring for oil or natural gas shall be erected, maintained or permitted upon the Condominium property.

13. Boat Dockage Uses. The use of all Docks is restricted to boat dockage. No trade, business, profession or commercial activity shall be conducted without the prior written consent of Developer. Nothing herein shall prevent Developer from leasing out Docks in its possession.

14. Filling In. No part of the Condominium property shall be increased in size by filling in the waters on which it abuts.

15. Boat Landings, Docks and Piers. Neither a Dock Owner nor the Condominium Association may make any additions to or changes in the boat landings, docks, piers and mooring posts, or in any way alter the Docks, Limited Common Elements or Common Elements unless such changes, additions or alterations have been approved in writing by Developer. No boathouse shall be

constructed on or adjacent to the Condominium property without Developer's prior written approval.

16. Obstruction of View. No structure, building, hedge or tree which would materially obstruct the view shall be placed in or upon the Condominium property. Nothing herein shall prevent Developer or its contractors from erecting temporary structures for construction purposes.

17. Roadways, Streets and Paths. Each Dock Owner is hereby granted a non-exclusive use easement on and over all roadways, cart paths, sidewalks and pathways within the Complex.

18. Navigational Easement. Each Dock Owner or occupant is hereby granted a non-exclusive easement for navigational purposes in or on all waterways within the Complex.

19. Signs. No sign of any character shall be displayed except when approved by Developer for directional or informational purposes.

20. Remedies. For a violation or breach of any of these restrictions by any person claiming by, through or under Developer, or by virtue of any judicial proceeding, Developer shall have the right to proceed at law or in equity to compel a compliance with the terms hereof or to prevent the violation or breach of any of them. In addition to the foregoing right, Developer shall have the right, whenever there shall have been built anywhere in the Complex any structure which is in violation of these restrictions, to enter upon the property where such violation exists and summarily abate or remove the same at the expense of the Owner. Such entry and abatement or removal shall not be deemed a trespass. The failure promptly to enforce any of the restrictions by any court of competent jurisdiction shall not affect any of the other restrictions.

21. Lien Foreclosure Rights. Any lien right arising in favor of ORIA or the Club pursuant to this Declaration may be foreclosed by either ORIA or the Club as provided by law.

22. Development of Complex. Each Dock Owner acknowledges his awareness of Developer's right to plan and develop the Complex. Developer reserves sole discretion for implementing such development plan and amendments that it may make to said development plan from time to time in its uncontrolled discretion. By acceptance of his deed, each Dock Owner agrees he will do nothing to delay or interfere with the pursuance by the Developer of said plan and its amendments and expressly consents to such zoning and planning considerations that are or may become necessary for said development.

23. Approval of Boats and Boat Names. Association and Developer shall have the right to approve the type and name of each Boat which occupies a Dock. No Boat may occupy a Dock without such approval.

24. Duration of Restrictions. The foregoing restrictions, limitations, burdens and conditions shall run with the land and, except as otherwise specifically provided for herein, shall remain in full force and effect until the first day of January 2080, at which time they shall be extended automatically for successive periods of ten (10) years each, unless, by vote of two-thirds (2/3) of the then Dock Owners, after the initial duration of these restrictions or any extensions thereof, it is agreed in writing to change them in whole or in part.

25. Amendment of Restrictions. Notwithstanding the foregoing, Developer and its successors reserve the right hereafter, from time to time, to amend, modify, add to or delete any part of or all of the restrictions on all or any portion of the Condominium property owned by Developer, without notice to or consent from any of the Dock Owners.

IN WITNESS WHEREOF, the undersigned has caused these presents to be executed by its duly authorized officers and its corporate seal affixed, on the date and year first hereinabove written.

Signed, Sealed and Delivered
In the Presence of:

OCEAN REEF CLUB, INC.

[Signature]
[Signature]

By: [Signature]

STATE OF Florida)
) : ss
COUNTY OF Marion)

I HEREBY CERTIFY that on this 17th day of April, 1986, before me personally appeared [Signature], as [Signature] of Ocean Reef Club, Inc., a Florida corporation, to me known to be the person described in and who executed the foregoing instrument, and has acknowledged the execution thereof to be his free act and deed for the uses and purposes therein mentioned; and that the said instrument is the act and deed of said corporation.

WITNESS my signature and official seal at [Signature] in the County and State aforesaid, the day and year last aforesaid.

[Signature]
Notary Public,

My Commission expires:

LORI L. PALRUD
Notary Public State of Florida
My Commission Exp. Feb. 7, 1988
Bonded Thru General Ins. Und.

EXHIBIT "A"

LEGAL DESCRIPTION
GATEHOUSE DOCKS, A CONDOMINIUM

BEING A PORTION OF THE NORTHWEST ONE-QUARTER OF SECTION 18, TOWNSHIP 59 SOUTH, RANGE 41 EAST, "PLAT OF LANDS OF SEABOARD PROPERTIES, INC.", ACCORDING TO THE PLAT THEREOF AS RECORDED IN PLAT BOOK 4, PAGE 83 OF THE PUBLIC RECORDS OF MONROE COUNTY, FLORIDA, AND TOGETHER WITH PORTIONS OF TRACTS B AND C AND GATEHOUSE ROAD, "HARBOR COURSE SECTION THREE OCEAN REEF PLAT NO. 13", ACCORDING TO THE PLAT THEREOF AS RECORDED IN PLAT BOOK 7, PAGE 7, OF THE PUBLIC RECORDS OF MONROE COUNTY, FLORIDA, BEING MORE PARTICULARLY DESCRIBED BY METES AND BOUNDS AS FOLLOWS:

COMMENCE AT THE NORTHWEST CORNER OF SAID SECTION 18; THENCE S1°05'21"E ALONG THE WEST LINE OF SAID SECTION FOR 35.00 FEET TO THE POINT OF BEGINNING; THENCE N88°12'44"E FOR 306.81 FEET; THENCE S10°13'36"E FOR 98.05 FEET; THENCE N84°51'17"W FOR 4.57 FEET; THENCE N84°40'29"W FOR 84.80 FEET; THENCE N84°08'47"W FOR 180.50 FEET; THENCE N84°45'09"W FOR 96.50 FEET; THENCE N86°51'44"W FOR 73.32 FEET; THENCE N88°35'53"W FOR 72.04 FEET; THENCE S87°08'20"W FOR 55.40 FEET; THENCE S74°29'32"W FOR 47.05 FEET; THENCE S63°29'50"W FOR 23.31 FEET; THENCE S61°51'46"W FOR 46.50 FEET; THENCE S61°44'22"W FOR 181.50 FEET; THENCE S61°03'47"W FOR 144.42 FEET; THENCE S60°57'00"W FOR 384.00 FEET; THENCE S60°05'56"W FOR 36.20 FEET; THENCE S62°12'44"W FOR 19.39 FEET; THENCE N28°47'20"W FOR 52.56 FEET TO A POINT ON THE SOUTHERLY RIGHT-OF-WAY LINE OF AFOREMENTIONED GATEHOUSE ROAD; THENCE N61°12'40"E ALONG SAID SOUTHERLY RIGHT-OF-WAY LINE AND ITS NORTHEASTERLY PROLONGATION FOR 721.52 FEET TO THE POINT OF CURVATURE OF A CIRCULAR CURVE CONCAVE TO THE SOUTHEAST; THENCE NORTHEASTERLY ALONG THE ARC OF SAID CURVE HAVING A RADIUS OF 565.00 FEET AND A CENTRAL ANGLE OF 29°04'35" FOR 286.73 FEET TO THE POINT OF TANGENCY; THENCE S89°42'45"E FOR 136.87 FEET TO THE POINT OF BEGINNING. SAID PARCEL CONTAINS 1.84 ACRES MORE OR LESS.

04-359.21

Legal #2

March 14, 1986

Revised 4/8/86

BL/rg